constitutional oversight, they are staging political theatre that damages both governance and the Constitution," says Faizan Mustafa, Vice-Chancellor, Chanakya National Law University, Patna.

Assent as Weapon

The Governor's or President's assent is necessary for a bill—except a money bill—passed by the legislature to become law. While Article 163 of the Constitution deals with the powers of the governor, Article 200 specifically deals with the granting of assent to bills. However, there is no timeline prescribed for governors to decide on a bill. The current conflict is over this ambiguity—Raj Bhavans have exploited it to sit on bills indefinitely. Several state governments claim that they are using this procedure to keep bills in "cold storage". "Governors—and the President of India, for that matter—are vital not because they can obstruct or delay governance (they shouldn't and, constitutionally, they can't), but because they are meant to serve as moral compasses. Their role is to uphold and reflect the ethical standards that reinforce the legitimacy and democratic integrity of elected governments," says former West Bengal Governor Gopal Krishna Gandhi.

Interestingly, most of the bills pending in Raj Bhavans relate to the education sector, particularly the appointment of vice-chancellors (VCs). Eight of the bills Ravi has an issue with pertain to a proposal to amend the statutes of certain state universities to enable the CM to take over the role of the chancellor from the governor. Kerala witnessed a similar tussle between the Pinarayi Vijayan government and then Governor Arif Mohammad Khan over the appointment of VCs in the 13 state-run universities. The Bengal government has been engaged in a legal battle with Governor Bose over the appointment of VCs in 31 state universities. Likewise, Punjab Governor Banwarilal Purohit clashed with CM Bhagwant Mann over VC appointments in 2020.

Such conflicts are rooted in the intent of the political class to exercise an ideological grip over the higher education sector. Though education falls in the concurrent list, where both the Centre and states can legislate, entry 66 of the Union list—determination of standards in institutions for higher education—gives the Centre substantial authority over higher education. Such conflicts get intensified when the Centre and the states have governments with almost diametrically opposite ideologies. "Politics all over the world has become extremely divisive. The conflicts between governors and state governments are reflective of this clash of ideologies," says Mahesh Jethmalani, senior lawyer and former Rajya Sabha MP.

But nowhere is the imbalance starker than in Jammu and Kashmir, where the LG wields sweeping authority under the 2019 Reorganisation Act. Every bill requires his assent, even money bills. CM Omar Abdullah has been repeatedly overruled—on transfers, appointments and holidays. His proposed Transaction of Business Rules still await LG approval. Even emergency response suffers: 17 died in Rajouri in January 2025 due to bureaucratic delays and split authority.



"The structural flaw in the governor's office is that the occupant's survival is bound to political will of the Centre"

KEVIN JAMES
Public policy expert

According to analysts, governors act the way they do because they are political appointees, often chosen for ideological loyalty or as reward for past services. "The structural flaw in the governor's office is that it binds the occupant's survival to the political will of the Centre. Regardless of personal integrity, a governor's institutional incentive is to align with the central government's interests. Until we democratise the appointment and removal processes, every solution, whether through judicial intervention or political convention, will only be temporary firefighting, not structural reform," says public policy expert Kevin James.

The Case for Reform

Multiple commissions have been formed to review and reform Centre-State relations and encourage cooperative federalism. Their reports speak of appointing non-political governors through independent broad-based mechanisms, securing the consent of the concerned CMs to the appointment, and giving governors fixed, non-renewable tenures. There are also recommendations about the manner of exercising discretion in the appointment and dismissal of CMs and in recommending President's Rule. None of these reports or recommendations have been taken up for implementation by any government at the Centre.

Interestingly, to end the monopoly of the Centre selecting its 'own man', the BJP, along with the Left Front government in Bengal, had in the 1980s, suggested that the appointment be made from a panel prepared by the state legislature with the Inter-state Council as the appointing authority, not the central government. "Governors citing 'discretion' to justify unilateral action misunderstand the very nature of discretion under the Constitution, which is bound by the principles of reasonableness, good faith and constitutional morality, not the whims of political convenience or personal ideology. Even if rare cases arise where a governor may legitimately question a state's decision, the role must be confined to advice, counsel and cooperation, not confrontation," says Mustafa. Until then, this new battleground in Indian federalism will see continued skirmishes. ■

-with **Amarnath K. Menon, Arkamoy Datta Majumdar, Jeemon Jacob, Dhaval S. Kulkarni, Amitabh Srivastava, Ajay Sukumaran and Kaleem Geelani**